

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alex Tuminello	Team: Squad #14	CCRB Case #: 201510020	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 11/23/2015 1:03 PM	Location of Incident: Intersection of Springfield Blvd. and Merrick Blvd.	18 Mo. SOL 5/23/2017	Precinct: 105
Date/Time CV Reported Tue, 11/24/2015 12:20 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 11/24/2015 12:20 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Carleo	12860	934580	AUTO CD
2. DT3 Martin Maloney	02767	924118	AUTO CD

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Christophe Roche	31998	935609	105 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Carleo	Abuse: PO Michael Carleo stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . DT3 Martin Maloney	Abuse: Detective Martin Maloney stopped the vehicle in which § 87(2)(b) was an occupant.	B . Exonerated
C . POM Michael Carleo	Force: PO Michael Carleo pointed his gun at § 87(2)(b)	C . Exonerated
D . DT3 Martin Maloney	Force: Detective Martin Maloney pointed his gun at § 87(2)(b)	D . Exonerated
E . POM Michael Carleo	Discourtesy: PO Michael Carleo spoke discourteously to § 87(2)(b)	E . Substantiated
F . POM Michael Carleo	Abuse: PO Michael Carleo searched the vehicle in which § 87(2)(b) was an occupant.	F . Exonerated

Case Summary

On November 23, 2015, at approximately 1:03 p.m., § 87(2)(b) was driving on Springfield Boulevard near its intersection with Merrick Boulevard when he observed a minivan tailgating behind him. § 87(2)(b) stated that he immediately pulled over near a Burger King and called 911 (**Allegation A and B**). § 87(2)(b) provided the van's license plate to the dispatcher and provided his location. Two officers identified by the investigation as PO Michael Carleo and Detective Martin Maloney of the Auto Crime Division, exited the van and allegedly had their guns pointed at § 87(2)(b) as they stood on the front driver's side of his vehicle (**Allegation C and D**). § 87(2)(b) stated that his window was rolled down when PO Carleo allegedly stated, "We the police motherfucker" (**Allegation E**). § 87(2)(b) was removed from the vehicle and placed in cuffs. The officers explained to him that he was stopped in regards to a stolen vehicle. § 87(2)(b) then asked the officers if he could get his hat that fell and PO Carleo allegedly stated, "Wake the fuck up" (within **Allegation E**). Approximately three to four vehicles from the 105th Precinct then arrived at the location. PO Carleo then entered and searched the front driver's side of the vehicle as well as the center console. PO Carleo also allegedly searched the back passenger side of the vehicle and asked § 87(2)(b) "Where is the bag?" (**Allegation F**). § 87(2)(b) stated that he had an army styled back-pack in the vehicle but he did not observe PO Carleo look inside of the bag. § 87(2)(b) stated that nothing was located in the vehicle and he was then placed into a marked vehicle by PO Carleo and Detective Maloney. § 87(2)(b) stated that he was transported by officers from the 105th Precinct to the 113th Precinct stationhouse.

Video of this incident was provided by § 87(2)(b) during his CCRB statement. § 87(2)(b) stated that this video was taken from a dash-cam which he has located inside of his vehicle (Encl. Board Review 01-04).

Mediation, Civil and Criminal Histories

- This was complaint was unsuitable for mediation because § 87(2)(b) was arrested in regards to this incident.
- On December 29, 2015, a Notice of Claim inquiry was sent to the NYC Comptroller's Office. The response will be added to the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- Since June of 2009, § 87(2)(b) has filed 29 complaints. § 87(2)(b)
- PO Carleo has been a member of the service for 11 years and has been the subject of 22 CCRB allegations involving eight cases. In CCRB case no. 201311051, a refusal to provide name and shield number allegation was substantiated against PO Carleo and he received instructions. In CCRB case no. 201400676, a physical force, vehicle search and stop were all substantiated against PO Carleo. He received instructions and command

discipline in regards to these substantiated allegations. His CCRB history includes four previous discourtesy allegations in cases 200505861, 201011309, 201012873, and 201400676, three of which were unsubstantiated and one of which was closed as complainant uncooperative. His CCRB history also includes one previous gun pointed allegation in case 200610281, which was exonerated.

- Detective Maloney has been a member of the service for 16 years and has been the subject of four CCRB allegations involving three cases. § 87(2)(g)

Potential Issues

- On December 9, 2015, the undersigned investigator contacted § 87(2)(b) who identified himself as the § 87(2)(b) of the Burger King located at the intersection of Springfield Boulevard and Merrick Boulevard in Queens. § 87(2)(b) agreed to look at the video footage that he has from the date of the incident and stated that he would have no problem providing the CCRB with the footage. On December 14, 2015, the undersigned investigator contacted § 87(2)(b) via telephone and he explained that his camera system is currently being upgraded. § 87(2)(b) stated that his cameraman had his hard-drive but that when it was returned, he would check the system and mail any footage to the CCRB. On December 28, 2015, the undersigned investigator contacted § 87(2)(b) for an update in regards to the video footage and a voicemail was left in regards. § 87(2)(b) has not yet responded.

Findings and Recommendations

Allegation A- Abuse of Authority: PO Michael Carleo stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B- Abuse of Authority: Detective Martin Maloney stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that since November of 2014, he has been stopped approximately 15 times and arrested four times by the NYPD in regards to his car being stolen. § 87(2)(b) stated that on November 23, 2015, at approximately 1:03 p.m., he was driving his 2008 BMW on Springfield Boulevard near its intersection with Merrick Boulevard in Queens. As he was driving, § 87(2)(b) observed a minivan with the license plate number § 87(2)(e), § 87(2)(f) tailgating behind him. He stated that he then heard a siren and immediately pulled over. § 87(2)(b) stated that upon being pulled over, he called 911 and gave the dispatcher the plate number to the van as well as the location of his stop.

Both PO Carleo and Detective Maloney identified themselves as the officers that stopped § 87(2)(b) on the date of the incident. They stated that the vehicle that they were assigned to during their tour was equipped with a plate reader which consists of two cameras that take photos of license plates in order to register them and identify stolen vehicles. When a plate is reported stolen, the camera will set off an alarm after the plate is read. On the date of the incident, as the officers travelled down Springfield Boulevard, the stolen vehicle alarm was set off by a vehicle heading southbound as the officers headed northbound. PO Carleo confirmed the vehicle as a BMW, made a U-turn and signaled to the driver to pull over by applying the vehicle's lights and sirens. The vehicle was then stopped in a turning lane at the

intersection of Springfield Boulevard and Merrick Boulevard. Both officers' memo books (Encl. Board Review 16 and 17) indicate that § 87(2)(b)'s vehicle was used in the commission of a crime and while his arrest report for this incident was sealed, § 87(2)(b) was initially charged with § 87(2)(a) 160.50

§ 87(2)(a) 160.50

is a class E felony.

§ 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegations A** and **B** be closed as **exonerated**.

Allegation C- Force: PO Michael Carleo pointed his gun at § 87(2)(b)

Allegation D- Force: Detective Martin Maloney pointed his gun at § 87(2)(b)

§ 87(2)(b) stated that upon being pulled over, both PO Carleo and Detective Maloney approached his vehicle and had their guns pointed at him as they stood on the front driver's side of the vehicle. Dash-cam video footage and a 911 call placed by § 87(2)(b) both indicate that upon being approached by the officers, § 87(2)(b) stated, "Guns on my face ok." The video footage however does not indicate if guns were pointed at § 87(2)(b)

PO Carleo recalled that as he exited his vehicle and walked towards the driver's side of the BMW, he observed § 87(2)(b) on the phone and fidgeting inside of the car. He identified himself as the first officer to approach § 87(2)(b) and Detective Maloney followed behind him. He stated that he drew his firearm from the holster and pointed it towards § 87(2)(b). He identified himself as a police officer by displaying his shield through the window with his opposite hand and stated to § 87(2)(b) "Get off the phone, put your hands up and exit the vehicle." Detective Maloney did not recall if he or PO Carleo pointed their gun at § 87(2)(b) on the date of the incident.

An officer can draw his firearm and point it at another person so long as he has a reasonable fear for his own or another's personal safety. An officer is permitted broad discretion to display his weapon whenever he feels that his life or the life of another is endangered, and

due deference is given to the judgment to the officer at the scene. The determination as to when that exercise of discretion rises to the level of misconduct must be made by assessing the reasonableness of the officer's actions in the totality of the surrounding circumstances. *PD v. Gliner*, OATH Index No. 955/00 (2000) (Encl. Board Review 11).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations C and D** be closed as **exonerated**.

Allegation E-Discourtesy: PO Michael Carleo spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that upon approaching his window, PO Carleo stated to him, “We the police motherfucker.” § 87(2)(b) also alleged that upon being taken out of the vehicle and escorted towards a curb, his hat fell off and he asked the officers if he could get the hat. PO Carleo then stated, “Wake the fuck up.” Dash-cam video footage from the date of the incident indicates that upon walking up to § 87(2)(b)'s window, an officer states, “911, we’re the cops motherfucker” (Encl. Board Review 05).



201510020_20160107_1155_DM.mp4

The dash-cam footage and a recording of § 87(2)(b)'s 911 call from the incident also indicates that an officer states to § 87(2)(b) “You military? Wake the fuck up” (Encl. Board Review 06).



201510020_20160107_1206_DM.mp4

PO Carleo and Detective Maloney did not initially recall if any officers spoke discourteously to § 87(2)(b) on the date of the incident. At the conclusion of their CCRB interviews, the undersigned investigator presented the dash-cam video footage of the incident to both officers. PO Carleo identified himself as the officer that stated to § 87(2)(b) “911, we’re the cops motherfucker” and “You military? Wake the fuck up.” He stated that the video footage refreshed his recollection of the statements that were made. Detective Maloney corroborated that the video refreshed his recollection of these statements being made and he identified the voice on the footage as that of PO Carleo.

Patrol Guide Procedure 203-09 explicitly states that all members of the service are to be courteous and respectful (Encl. Board Review 12).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as **substantiated**.

Allegation F: Abuse of Authority- PO Carleo searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that upon being sat on a curb by the officers, PO Carleo began to search his vehicle. § 87(2)(b) alleged that PO Carleo entered the front driver's side of the vehicle and searched the front driver's side and the front passenger side. He alleged that PO Carleo searched within the center console and then proceeded to search the back seats of the vehicle. § 87(2)(b) also alleged that PO Carleo asked him about a bag approximately two times. § 87(2)(b) stated that he had an army-styled back-pack in the vehicle but he did not observe PO Carleo look inside the back-pack. § 87(2)(b) stated that he was approximately four to five feet away when he observed the search and that there was no contraband in the vehicle.

According to PO Carleo, § 87(2)(b) told him that he owned the car and gave him permission to look inside of the center console for the title of the vehicle document. At that time, PO Carleo only opened the center console and removed the title of the vehicle. The title was issued on October 27, 2015. Contained in the body of that document was an explanation that the vehicle had been stolen and used in the commission of a crime. PO Carleo later entered the car a second time because he needed § 87(2)(b)'s ID to correlate ownership of the vehicle with § 87(2)(b). PO Carleo reentered the vehicle to search for § 87(2)(b)'s wallet containing his ID. § 87(2)(b) had told the officers that his ID was in a military style backpack. PO Carleo did not recall in which area of the car the backpack was located. Detective Maloney stated that he did not recall if any officers entered and searched within § 87(2)(b)'s vehicle on the date of the incident.

Dash-cam video footage from the date of the incident clearly indicates that during the vehicle stop, an officer entered within the vehicle three times on the date of the incident. The first two times the officer enters the vehicle, the officer can be seen searching around the front driver's area of the vehicle. At no point does the officer search within the back of the vehicle. The audio of the video also does not indicate that an officer asked § 87(2)(b) about a bag (Encl. Board Review 07-08).



201510020_20160107_1210_DM.mp4



201510020_20160107_1214_DM.mp4

The footage also indicates that upon entering the vehicle for a third time, the officer begins to drive § 87(2)(b)'s vehicle away from the location (Encl. Board Review 09).



201510020_20160107_1219_DM.mp4

During his CCRB statement, PO Carleo positively identified himself as the officer that is seen in the videos.

It is well established that a vehicle may be searched without a warrant pursuant to the “automobile exception” if officers have probable cause to believe the vehicle contains evidence of a crime. The entry and inspection of personal effects must be justified in their inception and be reasonably related in scope and intensity to the circumstances which rendered their initiation permissible. People v. Smith 98 A.D.3d 590 (2012) (Encl. Board Review 13)

§ 87(2)(g)
[Redacted text block]

§ 87(2)(g)
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As a result, it is recommended that **Allegation F** be closed as **exonerated**.

Squad: 14

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date